intersex
NIGERIA
CENTER FOR HEALTHCARE DEVELOPMENT & YOUTH EMPOWERMENT

INTERSEX SRHR TOOLKIT

A comprehensive guide for human rights defenders and organisations in Nigeria.

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ACKNOWLEDGEMENT

We express our heartfelt appreciation to every individual and organization who played a role in the development of this Intersex SRHR Toolkit for human rights defenders in Nigeria. Your support and dedication to this process have been instrumental in making this toolkit a comprehensive and empowering resource.
To begin with, we extend our deepest gratitude to intersex individuals in Nigeria who shared their personal stories, challenges, and aspirations towards SRHR. Your courage in speaking out for change has been the driving force behind this toolkit and ensured that the toolkit reflects the lived experiences of the intersex community here in Nigeria.

We would also like to acknowledge the contributions of other CSOs, and stakeholders within the Nigeria human rights and SRHR movement towards development of this toolkit. Your feedback, expertise and active participation in the data collection process have been instrumental in shaping the contents of this toolkit. We extend our heartfelt thanks to everyone who participated in this process.

A special appreciation is due to our dedicated consultant, Doose Didi Mchihi. Your hard work, attention to details and passion for promoting intersex SRHR have been instrumental in bringing this toolkit to life. Your commitment to accuracy, accessibility and inclusivity has ensured that this toolkit is user friendly and effective in empowering human rights defenders in Nigeria about Intersex SRHR.

Also, we extend our gratitude to the international organizations and experts who have generously shared their knowledge, experiences, and best practices. Your global perspective and expertise have enriched the content of this toolkit, making it a comprehensive and impactful resource for human rights defenders in Nigeria.
Our deep gratitude to Hivos for their support through the We Lead Project in Nigeria, which made the creation of the Intersex SRHR Toolkit possible. Their unwavering support has been helpful in enabling Intersex Nigeria to bring this toolkit to completion.

We also want to acknowledge the contributions of the entire Intersex Nigeria Team for their invaluable contributions throughout the process of developing this toolkit.

FOREWORD

In the fight for human rights and inclusivity, the intersex community have overtime been silenced, marginalized, and overlooked. Intersex people are individuals who are born with reproductive or sexual anatomy that do not fit typical definitions of "male" or "female".

As an intersex person and activist, I have witnessed firsthand the struggles faced by intersex individuals in Nigeria and around the world. These struggles range from harmful medical interventions without personal, prior, free, and fully informed consent, to discrimination and stigmatization within the society. It is with great pleasure and hope for my community that I introduce this Sexual and Reproductive Health and Rights (SRHR) toolkit for human rights defenders and organizations in Nigeria, focusing on intersex SRHR, inclusivity, and advocacy.

This toolkit is a comprehensive guide designed to empower human rights defenders with the right knowledge, tools, and strategies needed to effectively advocate for the rights and well-being of intersex individuals. It aims to shed light on the unique challenges faced by intersex people in accessing their sexual and reproductive health and rights, as well as provide practical guidance on how to promote inclusivity and limit discrimination and stigmatization.

Through this toolkit, we hope to foster a greater understanding of intersex variations and the importance of respecting and protecting the bodily autonomy and human rights of intersex individuals. It is crucial that we challenge the prevailing narrative that only acknowledges binary notions of sex and gender, and instead embrace the beautiful diversity that exists within the intersex community. By equipping you all with the necessary knowledge and skills, we can work together to create a society that is inclusive, respectful, and supportive of intersex individuals. This toolkit provides a roadmap for advocacy, outlining key strategies for engaging with policymakers, healthcare providers, and the broader public to effect positive change.

I would like to express my deepest gratitude to the team of dedicated individuals who have worked tirelessly to develop this toolkit. Their commitment to intersex rights and their unwavering belief in the power of advocacy is truly inspiring. I would also like to extend my gratitude to our partner (HIVOS-We Lead) and everyone else who have made this project possible.

To all the human rights organizations and defenders in Nigeria, I commend you for your dedication and bravery in fighting for justice and equality. Your work is invaluable in challenging societal norms and ensuring the rights of vulnerable individuals are not forgotten or ignored. I urge you to utilize this toolkit as a resource, a guide, and a source of inspiration as you continue your great work.

Together, let us strive for a future where intersex individuals are not only recognized and respected, but are able to fully exercise their sexual and reproductive health and rights. Let us create a society where diversity is celebrated, and where every individual can live with dignity, free from discrimination and prejudice.

In solidarity,

Obioma Chukwuike

Executive Director
Intersex Nigeria

OVERVIEW

Sexual and Reproductive Health and Rights are fundamental rights that everyone regardless of your age, SOGIESC identity, economic status, and race should fully enjoy but that cannot be said for many other marginalized groups including the intersex community in Nigeria. The intersex community is not a homogeneous one, but a community which consists of individuals with multiple identities whose intersectional needs and issues cuts across other marginalized groups programmed for by feminist organizations, women, young and adolescent, LGBT+, and disability groups. Intersex is a biological variation. SRHR issues affects everyone who has been marginalized, and excluding one group creates gaps in achieving these rights. Lack of access to friendly SRHR services and information within any marginalized group leads to health gaps in every group.

Diversity and representation of every group should be reflected in all areas of our work as human rights activists and CSOs. Our human rights efforts should have intersex representation in every aspect, it should be accurate and specific. This toolkit dispels common myths and misconceptions which is a very helpful information while promoting intersex rights. There is also practical guidance on advocacy strategies and campaigns to enhance intersex integration into your advocacy initiatives.

PURPOSE OF THE TOOLKIT

The aim of this toolkit is to promote Intersex SRHR advocacy within human rights spaces. Promoting human rights which is inclusive of Intersex rights is a commitment made by all human rights organization and defenders in Nigeria and should be reflected in all aspects of your activism and organization's work, by

This toolkit provides guidance to human rights organizations and defenders on ensuring the inclusivity of intersex specific SRHR advocacy programs, interventions, and services within their primary advocacy goals. This toolkit is designed to raise awareness about the SRHR needs and challenges of the intersex community here in Nigeria.

The toolkit explores a wide range of topics, from basic terminologies and the medicalization of intersex bodies to the legal frameworks and human rights issues surrounding intersex SRHR and well-being in Nigeria. The guidance contains examples of what to do and what to avoid, and how our issues are interconnected, as well as suggested actions to improve cross-movement advocacy efforts that amplify our shared issues and concerns.

It is important to remember that every person's experience is unique, and no one toolkit can sum up the diversity of intersex lives and experiences. Still, by providing a full-strong foundation for understanding, advocating, and supporting intersex persons, we hope this toolkit will be a vital resource in the broader fight for justice, equality, and the rights of all gender and sex diverse persons in Nigeria.

AUDIENCE

This document is designed for all human rights activists, defenders and organizations in Nigeria working in the fields of SRHR, SGBV, LGBTQ+, Young and Adolescent, Child, and Women rights etc, to enable them to integrate intersex rights into their fight for justice, equality, and rights for all.

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INTRODUCTION

HOW IS THE TOOLKIT STRUCTURED?

The toolkit is divided into five sections and an introduction. Each section has been designed to be self- standing and can be read and applied separately.

Introduction describes the aim of the intersex SRHR toolkit, how the toolkit was developed, the structure and how it can be used for effective maximization. This toolkit seeks to address intersex SRHR challenges by providing a holistic approach to promoting intersex SRHR advocacy among human rights organization and defenders in Nigeria.

Section 1 engages with the question: Who are intersex people? this section emphasizes the importance of intersectionality. Recognizing that individuals' experiences of SRHR are influenced by various intersecting factors such as gender, race, ethnicity, and socioeconomic status, these toolkits provide guidance on addressing these complexities. identifies the key factors pushing accountability onto the agenda of CSOs in Nigeria.

Section 2 answers the question of what is SRHR and why is it important? And focuses on the specific sexual and reproductive health needs of intersex individuals in Nigeria. It provides information on intersex-specific healthcare issues and needs, including access to accurate and unbiased information, psychological support, and medical interventions. The toolkit also emphasizes the importance of informed consent and the right to bodily autonomy for intersex individuals.

Section 3 explores international, regional, and national legal frameworks related to intersex rights and SRHR. It provides guidance on how to analyze existing laws, identify gaps, and advocate for legal reforms to protect intersex individuals from discrimination, forced medical interventions, and other human rights violations.

Section 4 offers strategies and tools for human rights defenders and CSOs to advocate for intersex SRHR. It includes guidance on raising awareness, engaging with policymakers, collaborating with other stakeholders, and building alliances with intersex-led organizations. The toolkit also provides resources for developing campaigns, organizing workshops, and conducting research to further the cause of intersex rights.

Section 5 showcases successful advocacy initiatives, and best practices from around the world. It highlights innovative approaches, lessons learned, and strategies that have effectively promoted intersex SRHR. By sharing these examples, the toolkit aims to inspire and empower human rights defenders and CSOs to take action in their own contexts.

HOW TO USE THE INTERSEX SRHR TOOLKIT

This toolkit aims to provide human rights organizations, defenders and allies with comprehensive information and education in addressing the sexual and reproductive health and rights (SRHR) needs of intersex individuals in Nigeria, this toolkit serves as a valuable resource for organizations and people who are seeking to promote inclusivity and advocate for the rights of intersex people in Nigeria. By following the steps outlined below organizations and activists can maximize the impact of this toolkit and contribute to a more inclusive and equitable society for intersex individuals.

Step 1: Familiarize yourself with the toolkit: review the contents of this toolkit to get yourself familiar with the structure, it will enable you to better understand the resources available to you. This toolkit contains comprehensive information and knowledge on who intersex people are, their SRHR issues, case studies, advocacy strategies, legal gaps and provisions, and how to engage with the intersex communities within your program context including best practices.

Step 2: Identify how this toolkit aligns with your organizations mission and goals: Reflect on the specific areas within your work where intersex rights intersect with SRHR. This will help in identifying the specific areas of the toolkit that can be integrated into your organization's programs, campaigns, and advocacy efforts.

Step 3: Engage with Intersex Nigeria and other intersex organizations: Build meaningful relationships with intersex-led organizations or individuals to seek their input and guidance, collaborate with them when throughout the process of implementing this toolkit, ensuring that their voices are heard, and their needs are prioritized.

Step 4: Monitor and evaluate the impact of your organizations use of this intersex SRHR toolkit: assess the effectiveness of the toolkits strategies in advancing intersex rights and identify areas your organization can improve. Use the feedback to refine.

Step 5: Monitor and Evaluate Impact: regularly monitor and evaluate the impact of your organization's use of the Intersex SRHR Toolkit. This can be done through data collection, surveys, focus groups, or other methods of feedback. Assess the effectiveness of the toolkit's strategies in advancing intersex rights and identify areas for improvement. Use this feedback to refine your approach and enhance the impact of your organization's work.

WHO ARE INTERSEX PEOPLE?

Intersex individuals are born with variations of sex characteristics (sexual anatomy, reproductive organs, hormonal structure and/or levels and/or chromosomal patterns) that do not fit the binary notion of male or female categories, or that belong to both at the same time. The term "intersex" is an umbrella term for the spectrum of variations of sex characteristics that naturally occur within the human body. The term intersex acknowledges the fact that sex is a spectrum and people with variations of sex characteristics other than male or female exist.

Doctors often advise parents to perform surgical and other medical interventions on intersex new-born, children and sometimes adults to make their body (seemingly) conform to male or female characteristics. In most cases, such interventions are not medically necessary and can have extremely negative consequences on intersex children as they grow older.

Historically, the term 'intersex' was used as disorder that needed medical intervention to 'fix it'. In the past two decades, the term has been reframed and established by intersex human rights defenders and their organizations as the human rights-based umbrella term. Our sex characteristics are set out from birth, whether we are intersex or not. However, the fact that someone has an intersex body can become know at different times in their life: at birth, during childhood, in puberty or even in adulthood. Depending on the specific life circumstances and the degree of taboo in their environment, a person might learn that they are intersex at a very early age or later in life. Some intersex people never find out at all.

According to the United Nations at least 1.7% of the population, or, globally speaking, as of 2019, 131 million people have been born with intersex traits.This means that almost 1 person in 60 has a variation of sex characteristics and does not fit the typical medical and societal definition of male or female, and thus that at all ages they are at risk of being subjected to discrimination, stigmatization, violence and other forms of human rights violations on the basis of their variation of sex characteristics.

According to studies published in the Netherlands in 2014 at least 1 in 200 people are at risk of being subjected to invasive surgeries and other medical interventions, like hormonal treatment, based on being diagnosed by medical professionals as having a "Disorder of Sex Development" (DSD) or an "unspecified" diagnosis, such as "unspecified malformation of the male/female genitalia". Many of these interventions, especially but not limited to surgeries, are irreversible, deferrable, non-emergency interventions on healthy bodies and these interventions most often take place in infancy and childhood, without personal and fully informed consent.

Input data on Kenya census that captured intersex…….
"disorder of sex development (dsd)" is a medical umbrella term, which was introduced in 2006 by a clinician consensus statement. together with new categories of "syndromes", it replaced the older medical terms. some clinicians use dsd to stand for "differences of" or "diverse" sex development. however, in all its forms the term pathologises healthy variations of sex characteristics and refers to intersex sex characteristics as characteristics that are "deviant" from the norm of male and female bodies and thus need to be "disambiguated" or "fixed". the term "dsd" does not align with human rights standards, and is only used in this document and the accompanying appendix in direct quotations or when referring to medical concepts that use the term.

INTERSEX AND INTERSECTIONALITY

Intersectionality is a way of thinking about how different systems of power affect people who are already made vulnerable and marginalized by society. Taking an intersectional approach means looking beyond a person's individual identities and focusing on the places where their different identities meet. Kimberle Crenshaw, a black feminist and law scholar, came up with the term to talk about how people with multiple marginalised identities can face different kinds of discrimination and experience multiple levels of oppression that can't be thought of separately.

Intersectionality is a framework that has been used a lot to study and deal with discrimination problems related to gender, race, religion, gender identity, sexual orientation, sex characteristics, disability status and other identities. Intersectionality has also been used to help socially disadvantaged groups get better Sexual and Reproductive Health and Rights (SRHR) services by looking at social factors that might cause health differences. for example, real or perceived intersex phobic abuse from health practitioners has become a major cause of both health problems, Intersex Genital Mutilations and a lower rate of healthcare seeking among intersex people. This fear is made worse for intersex folks who are members of the LGBTQ+ community, are with disabilities and unemployed, who may have trouble getting friendly services from private health facilities because they cannot afford it.

Intersex exists as a point of intersection between several forms of interventions. Specifically, conversations on women's rights and experiences of gender-based violence and gender stereotypes, bodily autonomy, LGBT identification, disability, and child rights. Intersex individuals are marginalised within each of these discourses; that is, perceptions of what it means to be subjected to pathologizing, sexism, heterosexism, ableism, and torture fail to appropriately address many of the lived realities of intersex people.

Intersex people experience sexism and misogyny, and suffer the impact of gender-based violence, including in medical practices that impose gender stereotypes like Intersex Genital Mutilation (IGM), Female Genital Mutilation (FGM) and gender reassignment surgeries. For example, a judge in a 2016 Family Court of Australia case described a child's "Mickey Mouse underwear" and braided hair as part of a justification of her sterilisation (Carpenter 2018). Gender stereotypes are also evident in beliefs that men need to be able to stand to urinate. Intersex genital mutilation can involve the same types of medical intervention as those in female genital mutilation, and for the same rationales about gendered social norms and capacity for relationships, yet intersex people are marginalised within such conversations. Intersex people whose bodies do not fit gender norms experience bullying, stigmatisation and shame, evidence shows that this play a huge role in early school dropout rates within intersex people in Nigeria and in experiences of unemployment and poverty. Body shaming is also evident in sports, most conversations and interventions are focused on whether intersex people are female or male rather than how we are treated. The experiences of intersex people are marginalised within such debates and spaces.

Experiences of heteronormativity that people born with different sex traits have to deal with aren't talked about as much. People have started to think that intersex is about sex classification and figuring out who you are, even though most intersex people don't identify with third sex or gender categories. This makes it harder to see that our real social and legal identities are different from one another. Koyama and Weasel (2001) say that when we think about what sex and gender mean to us, it can make us lose sight of more difficult and widely shared problems. Carpenter (2018) says that the idea that people born with intersex variations might have their human rights violated before they have the freedom to show a non-normative identity is not true..

An intersectional lens to equity requires us to engage in a reflective process, recognising the ways in which different social identities (including our own) produce intersecting systems of privilege or oppression, and how these systems create different lived experiences within our social context.

When used thoughtfully, intersectionality recognises the diversity of experiences within marginalized groups and provides a framework for recognising and addressing the needs of individuals who are most disadvantaged, setting a pathway for a more just and equitable world.

CROSS MOVEMENT ADVOCACY FOR THE INTERSEX COMMUNITY

For far too long, intersex people have been marginalized and their rights neglected within global and national discourse. In recent years, the human rights movement in Nigeria have made significant efforts in advocating for the rights of marginalized groups. However, one of the groups which has been consistently overlooked and excluded from these efforts is the intersex group. These exclusions can be traced to the lack of awareness and understanding of intersex within our society. These exclusions have resulted in the perpetuation of harmful practices like IGM, non-consensual medical interventions and forced gender assignments, which violate their bodily autonomy and human rights.

Also, the binary idea of male and female sex that dominates our societal norms and institutions have contributed to the erasure of intersex identities within our communities. This exclusion has prevented intersex people from accessing vital resources and support systems, leading to increased vulnerability, violence, discrimination, and stigmatization. the lack of representation and recognition has perpetuated a cycle of invisibility and silence, hindering progress towards achieving equality and justice for intersex individuals.

There's an urgent need for change towards the intersex movement, prioritize and build cross movement advocacy to address the exclusion of intersex people from the overall human rights advocacy which includes SRHR. It is imperative that we begin collaborations with other marginalized communities such as the feminist organizations, young and adolescent, SOGIE, and disability rights activists and groups, a more comprehensive and intersectional approach can be developed with further steps when everyone comes together.

When we begin to carryout cross movement advocacy it will give us the opportunity to collectively understand the interconnectedness of our various struggles and help us recognize that our goals are same. Alliances should be forged so we can all work together, feminists'activists fighting against Female Genital Mutilation and intersex activists can amplify their voices and advocacy interventions to end F/Intersex Genital Mutilation which are both harmful practices that affect our SRHR. Projects that highlight the intersectionality of issues should also be important to undertake. For instance, it would be good to explore how issues from the other movements (women's rights, children's rights, people with disabilities, sex workers, people living with HIV/AIDS, LGBTQ, etc.) interconnect with the intersex movement and affect their SRHR.

Also, it is known that intersex organizations are significantly underfunded, and it would be great to see the more-funded movements help less financed and less visible organizations get funding opportunities, either through co-sponsoring projects and cross-movement initiatives or through sharing of information on funding sources and how to access these funding mechanisms.

Showing solidarity and supporting the causes among and between movements amplify our voices and strengthen our collective power, which is always beneficial to our aims of fighting against systemic oppression, prejudice and discrimination, whichever movement we are working for".

POPULAR INQUIRIES

Is intersex a gender identity? Intersex people can have as any gender identities (and sexual orientations) as people with a non-intersex body. Some intersex people consider their gender to be intersex. Others identify as male, female, nonbinary or a different gender. Intersex people are still very much invisible in our society. People who do not have an intersex variation and want to use 'intersex' to describe their gender identity, should know, unfortunately, they are making intersex human rights violations less visible.

Do intersex people define themselves as male, female? According to existing statistics for our research, most intersex individuals in Nigeria use the male or female sex identity and this suggests that they do identify as men or women. However, intersex individuals are usually forced by medical intervention and social pressure to conform as 'male' or 'female' sex. In Nigeria, identification of "intersex" as a sex is not obtainable, there are no legal provision in birth registry for intersex.

Isn't intersex covered by sexual orientation and gender identity? No. There no link between sex characteristics, gender identity and/or sexual orientation. Just like women or transgender, intersex people are primarily discriminated against or stigmatised as a result of sex stereotypes, which continue to prevail in our cultures and society. The most pressing intersex concerns are unwanted, unconsented and enforced medical interventions on intersex bodies. However, there are issues of structural as well as individual discrimination, harassment and violence on the ground of physical appearance and gender expression that intersex people share with trans people.

Does being intersex affect fertility? If you are intersex person, your ability to conceive a child depends on your reproductive anatomy. Many people who are intersex can have families through assisted reproductive technology (ART). This may involve invitro fertilization (IVF) using donated eggs, sperm, or embryos, or having a gestational carrier (surrogate)

Do you recommend assigning intersex children to a third sex or leaving the gender marker entry open? No, not when this option is compulsory for intersex children and unavailable to all other children. Assigning a third sex by law to an intersex child will out the child as intersex in any situation where their birth certificate has to be provided. If it is only available to intersex children, it is just another label that segregates them from the rest of society. As a result, the pressure on parents to choose medical measures in order to make the child eligible for one of the two categories (male and female) might even increase.

Instead, providing the options for all parents to leave the sex/ gender entry open for their child would promote the equality of all sexes and genders. This improves the situation for intersex children and non-intersex children alike. As long as this possibility is unavailable, there can be recommendations like registering intersex children as females or males, with the awareness that, like all people, they may grow up to identify with a different sex or gender. Another suggestion is creation of intersex sex marker to provide more inclusion and protection of intersex persons.

SEXUAL AND REPRODUCTIVE HEALTH AND RIGHTS OF INTERSEX PEOPLE

Sexual and reproductive health and rights, are fundamental human rights that are related to sexuality and reproduction, such as sexual health, sexual rights, reproductive health, and reproductive rights These rights allow people to make informed and meaningful decisions about their own sexual wellbeing, such as their sexual orientation, sex characteristics, relationships, sexual activity, family planning or their bodies. Everyone including intersex individuals is entitled to SRHR. It's an essential part of the universal health coverage, which doesn't just include the absence of disease or dysfunctions, but also ensures physical, emotional, mental, and social wellbeing. Knowing your rights is important to have a good sexual and reproductive health.

Sexual health is understood as a state of physical, emotional, mental and social well-being in relation to sexuality that encompasses reproductive health – including being able to control one's fertility, being free from sexual dysfunction, being free from sexual violence and female genital mutilation (and their consequences) having the freedom to decide what happens to one's own body, including the possibility of having pleasurable and safe sexual experiences, free of coercion, discrimination and violence. Sexual health and other rights may be violated due to stigma, institutional violence and forced medical interventions throughout intersex people's lifetimes. Harmful practices on intersex children – whether in medical or other settings – have lifelong consequences for physical and psychological health.

Sexual and reproductive health and rights are in particular important to intersex people because they are often subjected to harmful and unnecessary medical surgeries and interventions "to fix" their bodies to fit the binary categories of male and female. Intersex children are subjected to infanticide because their families do have access to information to make informed decisions about their life. In most cases, intersex individuals have been denied their right to life, prohibition of torture, inhuman and degrading treatment, right to self-determination and bodily integrity, right to private and family life, non-discrimination, right to an effective remedy, right to information, and right to freedom of expression.

IINFANTICIDE

Infanticide is the killing of intersex infants which happens when babies are born with variations in sex characteristics and cannot be identified as either male or female. These babies are then strangled or killed in other ways because it is considered a taboo, a bad omen, or a sign of misfortune. The indefiniteness of the child's genitals is considered a manifestation of sorcery, a curse, a punishment from God or a sign that the ancestors are angry with their descendants for some reason and sometimes intersex infants and their mothers may be considered witches or victims of witchcraft.

This sad fate intersex babies are faced with in most parts of Nigerian and Africa is because of cultural, religious, and personal beliefs within our society.

- *The right to security of the person, including freedom from injury to the body and the mind, or bodily and mental integrity is protected by the first substantive right in the Universal Declaration of Human Rights, article 3, as well as the International Covenant on Civil and Political Rights, article 9; and the Convention on the Rights of Persons with Disabilities, articles 16 and 17.*
- *All persons have the right to freedom from violence, and freedom from torture and illtreatment.*
- *States have an obligation to investigate, prosecute alleged perpetrators, provide victims with remedy, address patterns of violence, and tackle root causes.2*

INTERSEX GENITAL MUTILATION

Intersex Genital Mutilation (IGM), like Female Genital Mutilation (FGM), is the harmful, involuntary, unnecessary surgery carried out on the genitals of intersex newborns, infants and children for cosmetic, cultural or religious reasons. Although IGM is common, it is hardly spoken about because accurate verifiable numbers are hard to come by due to the unnecessary secrecy around intersex existence. IGM is conducted in the bid to "cure" intersex persons and to forcefully fit them into the binary notion of male or female. This irreversible non-consensual cutting is usually ignored and enforced even though intersex persons suffer several complications afterwards. Even in women's rights and the conversation around female genital mutilation, Intersex Genital Mutilation is hardly spoken about.

IGM comes with the risk of wrongfully assigning the sex of a child too young to declare their gender identity. These surgeries (which are mostly irreversible) could lead to health complications such as the case of an intersex person who had to go on dialysis after IGM surgery. There could be lasting pain, lack of sexual sensation, scarring, removal of gonads leading to sterilization and life-long hormone treatments, as well as psychological trauma for survivors.

Forced sterilization of intersex children and adults is recognized as a violation of fundamental human rights, including the right to health, the right to information, the right to privacy, the right to decide on the number and spacing of children, the right to found a family and the right to be free from discrimination. United Nations human rights bodies have also found that forced sterilization is a violation of the right to freedom from torture and ill-treatment.

IGM AND FGM COMMONALITIES TO CONSIDER

Framed in terms of the need to be accepted socially; however, for many intersex people, surgeries in their childhood and teenage years did not improve their situation concerning social inclusion or marginalisation.

Motivated by beliefs about what is considered acceptable sexual behaviour; in the case of intersex people, the ultimate goal of those performing IGM is to allow for penetrative intercourse of the future adult and for an alleged ability to procreate. Neither the impossibility to foresee the future intersex adult's gender identity, sexual orientation or sexual preference, nor the fact that the capacity for penetrative intercourse may be less important for the intersex adult than unharmed genitalia are taken into account.

Motivated by the notion that parts that are not considered female (or male) enough should be removed; in the case of intersex people this includes interventions on infants and children such as clitoris reduction/recession, removing the labia, moving the opening of the urethra to the tip of the penis, to name but a few.

Impact on the person's life and health; in the case of intersex people this includes impairment of sexual sensation, poorer sexual function, painful scarring, painful intercourse, increased sexual anxieties, problems with desire, infertility issues and lifelong trauma, including feelings of child abuse and sexual abuse.

1. Committee on Civil and Political Rights, n 43 at 2–3, 9; Yogyakarta Principles, n 25, p 10.

2. United Nations, "Universal Declaration of Human Rights", n 48 at article 5; United Nations, "International Covenant on Civil and Political Rights", n 46 at article 7; United Nations, "Convention on the Rights of the Child", n 46 at article 37(a); Human Rights Committee, "Concluding Observations on the Sixth Periodic Report of Australia" (CCPR/C/AUS/CO/6, 1 December 2017) at 25–26.

WHAT YOU CAN DO

To end Intersex Genital Mutilation and intersex infanticide, human rights organizations and defenders must employ a multifaceted approach to advocacy that combines advocacy, education, legal action, and collaboration.

- When designing and implementing projects for your target communities, make efforts to include activities that enforce and promote the rights of a child especially as it relates to Intersex Genital mutilation (IGM) and infanticide.
- Train your staff, peer educators, and community champions to always voice out their rejection of the practice of IGM and intersex infanticide during outreach activities, meetings, and during advocacy visits.
- If your programs cater to the needs of maternal and child healthcare services, engage expectant mothers on what intersex is and the possibilities of having one, so they begin to understand and spread the word.
- Bring up topics of IGM and intersex infanticide when engaging with community and religious leaders, educate them on the consequences of these practices so they can effect change in their communities.
- Engage children, young people, and teachers in schools, educate them on the topic of intersex, and the need to not bully intersex individuals who are among their peers but rather support them.
- Commemorate intersex international days by engaging the public and your social media audience on intersex topics, demystifying myths and misconceptions driving the practice of Intersex Genital Mutilation and intersex infanticide in our society.
- Develop IEC materials to educate people about the extent, impact, and consequences of IGM and intersex infanticide in Nigeria and how we can collectively end these harmful practices.
- Work with intersex led organizations to ensure that intersex people from birth, have their rights promoted and protected.

FORCED AND COERCIVE MEDICAL INTERVENTIONS

After birth, as children, adolescents and adults, many intersex people face violations of their physical integrity, including medical interventions without personal, prior, persistent and fully informed consent. These interventions reportedly cause severe physical impairments, ranging from painful scar-tissue or lack of sensation to osteoporosis and urethral issues, as well as psychological trauma. In regards to psychological trauma, evidence and research have shown that infants and very young children already do experience physical as well as psychological trauma and that it impacts them later in life.

The lack of access to accurate and inclusive information about intersex leads to

the violation of their right to informed consent. Intersex individuals often undergo these harmful and non-consensual medical interventions, such as, hormonal treatments and genital surgeries without fully understanding the implications or the alternatives available to them. These interventions are often performed to conform intersex bodies to societal norms of male or female, disregarding the individual's autonomy and bodily integrity. Without access to comprehensive information, intersex individuals are unable to make informed decisions about their own bodies and reproductive health, further eroding their SRHR.

Invasive, irreversible and non-emergency medical interventions should only be performed on a mature individual who explicitly wishes for these interventions and has given their personal and fully informed consent. Infants and children are future adults who will develop gender identities and sexual orientations specific to them, they will take their own decisions, and will make their own choices in regards to their personal and professional lives. An intact body, which allows for a multiplicity of choices in the future adult's life, is key to ensuring the right to self-determination of not only the child but also the future adult.

- *Forced and coercive medical interventions violate rights to the security of person, right to bodily and mental integrity, freedom from torture and ill-treatment, and freedom from violence. The right to security of the person, including freedom from injury to the body and the mind, or bodily and mental integrity is protected by the first substantive right in the Universal Declaration of Human Rights, article 3, as well as article 9 of the International Covenant on Civil and Political Rights .*
- *Forced and coercive medical interventions violate a right to health (including a right to free and informed consent), a right to legal capacity, and a right to non-discrimination. The right to health includes the right to control one's health and body, including sexual and reproductive rights, freedom from interference, and the right to be free from torture, non-consensual medical intervention and experimentation.*
- *All people have the right to privacy, including the right to private life, freedom from arbitrary or unlawful interference with privacy, and a right to the development and preservation of identity.*
- *When medical procedures take place without personal informed consent, they violate the right to freedom from experimentation.*

3. Committee on Civil and Political Rights, "General Comment No. 35: Article 9 (Liberty and Security of Person)" (CCPR/C/GC/35, 16 December 2014) at 2 to 3, and 9; Yogyakarta Principles, n 25, p 10.

4. Background note on human rights violations against intersex persons P, 9 under the UN for intersex awareness project.

5. Committee on Economic, Social and Cultural Rights, "General Comment No. 14 (2000) The Right to the Highest Attainable Standard of Health (Article 12 of the International Covenant on Economic, Social and Cultural Rights)" (E/C.12/2000/4, 11 August 2000) at 8.

6. United Nations, "Convention on the Rights of the Child" (1989) at article 16; United Nations, "International Covenant on Civil and Political Rights" (1966) at article 17; Zillén K, Garland J and Slokenberga S, "The Rights of Children in Biomedicine: Challenges Posed by Scientific Advances and Uncertainties" (Committee on Bioethics of the Council of Europe, 2017) at 44.

- *Poor, inadequate or partial information regarding the nature of a diagnosis, procedure or long-term outcomes, or the availability of peer support, violate the right to health and the right to accessible information and to free and informed consent.*
- *The Committee on the Rights of the Child has cautioned that the requirement to give priority to the "best interests of the child" may be open to manipulation and should not be abused to justify discriminatory policies. The Committee has stated that assessments of a child's best interests must encompass the views of the child, and interpretations of a child's best interests cannot be used to justify practices that conflict with human dignity and the right to physical integrity.*

PERSONAL, PRIOR, FREE AND FULLY INFORMED CONSENT

"Personal" emphasises that only the intersex individual themself can consent to such an intervention and that parent or caretaker or medical professional cannot substitute for the intersex person's consent.

"Prior" refers to the timing of the consent, such that specific consent must take place before the intervention for which it is sought. For example, there is a common experience such that although parental or individual consent was given for a specific intervention, additional surgeries or interventions were simultaneously performed without consent, then followed by an attempt to gather consent after the fact for the additional interventions.

"Free" refers to the impact of power dynamics that may diminish a person's autonomy and pressure that may impact the individual's ability to consent. For example, reportedly pressure from healthcare providers has lead intersex adults to consent to an intervention that they did not want just to finally have that pressure cease.

"Fully informed" emphasises the need for the provision of the full variety of information and opinions on an intervention, including de-medicalised information.

7. United Nations, "International Covenant on Civil and Political Rights", n 46 at article 7; United Nations, "Convention on the Rights of Persons with Disabilities", n 48 at article 15; Zillén et al, n 46 at 44.

8. International Covenant on Economic, Social and Cultural Rights, article 12; Committee on Economic, Social and Cultural Rights, General Comment 22 (E/C.12/GC/22), 2016, at paras 18-19

9. Committee on the Rights of the Child, "General Comment No. 14 (2013) on the Right of the Child to Have His or Her Best Interests Taken as a Primary Consideration (Art. 3, Para. 1)", n 53; Committee on the Rights of the Child, "General Comment 13: Article 19: The Right of the Child to Freedom from All Forms of Violence" (CRC/C/GC/13, 17 February 2011) at 61.

STIGMA AND DISCRIMINATION IN HEALTHCARE SETTINGS

The SRHR of intersex individuals is impacted by the stigma and discrimination they experience within healthcare facilities in Nigeria. Health care professionals deny intersex individuals the right to receive appropriate medical care because their bodies do not fit sex and gender norms, they often face severe obstacles when trying to access health care services and information due to their ongoing discrimination and (re)traumatising experiences with healthcare professionals.

However, due to the ignorance and stigmatization surrounding intersex, many healthcare providers lack training and the necessary knowledge to address these issues adequately. Most of the public, including healthcare professionals, have limited awareness, and understanding of intersex variations. This lack of knowledge perpetuates harmful stereotypes, misconceptions, and discriminatory attitudes towards intersex individuals. They face social exclusion, prejudice, and even violence, which further restricts their ability to access sexual and reproductive healthcare services without fear of discrimination or judgment.
The 2023 **Beyond the Binary** report by Intersex Nigeria points out a severe lack of knowledge about intersex people, the human rights violations they face and the specific needs that follow from these experiences exists among medical practitioners. This lack is matched with personal bias that can result in disbelief and insults, the refusal to perform needed examinations, and examinations being carried out in violent ways or without the intersex person's consent. Intersex people regularly speak in FGDs and reports to Intersex Nigeria that they are at risk of sexual harassment in medical settings. The lack of training for medical practitioners and other healthcare professionals severely hinders intersex people in accessing their right to health.

- *Everyone is entitled to enjoy the right to health. Children have the right to the enjoyment of the highest attainable standard of health and to facilities for the treatment of illness and rehabilitation of health.*
- *The right to sexual and reproductive health is an integral part of the right to health, closely linked to enjoyment of rights to freedom from violence and coercion, to bodily integrity, to nondiscrimination, and access to education, information and appropriate health services .*

10. Committee on Economic, Social and Cultural Rights, "General Comment No. 22 (2016) on the Right to Sexual and Reproductive Health (Article 12 of the International Covenant on Economic, Social and Cultural Rights)", n 10 at 1
11. World Health Organization, n 10, pp 1, 18 and 27.
12. World Health Organization, UNAIDS, UNHCR, UNICEF, World Food Programme, United Nations Development Programme, UNFPA, UN Women, International Labor Organization, Office of the High Commissioner for Human Rights and International Organization for Migration, "Joint United Nations Statement on Ending Discrimination in Health Care Settings".

- *Discrimination in healthcare settings is widespread, and violates the most fundamental human rights. Users of healthcare services should be empowered to demand their rights and hold service providers accountable for discrimination-free healthcare. Access to effective mechanisms for redress and accountability must be guaranteed. Healthcare professionals must be provided with guidance and practical tools to raise awareness of human rights standards for non-discrimination in healthcare.*

WHAT YOU CAN DO

In order to ensure intersex people's right to health, self-determination and bodily integrity, human rights organizations and defenders must:

- Actively collaborate with intersex led organizations to advocate for the enactment of laws that prohibit medical practitioners and other local professionals from conducting any irreversible, non- emergency sex- "normalising", sex- "assigning" or sex- altering surgical or other interventions on a person's sex characteristics unless the intersex person has provided personal, free, and fully informed consent.
- If you program for FGM survivors, create access to reparative measures for survivors of intersex genital mutilation (IGM) as well.
- Call out cases of discrimination from healthcare providers or
- Involve intersex activists in your training workshops or dialogues with medical practitioners and healthcare providers to educate them on the consequences of harmful and non-consensual surgeries on intersex individuals.
- Speak to your donors to invest in funding intersex groups and organisations so that they can engage in projects offering trainings for medical professionals, midwives, psychologists, and other professionals working in the field of physical and mental health.
- When designing and implementing programs, include intersex people as a vulnerable group so they can benefit from the provisions and measures your organization is taking up to support and protect the rights of survivors and victims of harmful medical and cultural practices in Nigeria including gender-based violence.

FORMATION OF INTIMATE RELATIONSHIPS

Intersex individuals experience a lot of challenges when it comes to forming and maintaining intimate relationships. These challenges are influenced by societal challenges and discrimination which makes most intersex individuals to suffer feelings of confusion, shame, and isolation. Due to the harmful medical intervention and conversion practices intersex people are often subjected to, they struggle with body image issues, develop a low self-esteem, and have no sense of belonging, all of which hinders some intersex people's ability to form and maintain intimate connections. The fear of rejection or judgement from potential partners can create a constant state of anxiety, making it difficult to trust and open emotionally.

The documentary produced by Intersex Nigeria in 2022 titled "In-between Sexes" projected these challenges faced by intersex people in Nigeria, what their specific challenges have been living as intersex people and how they have been able to navigate their lives.

The lack of awareness and understanding of the term intersex in our society keeps fueling misconceptions and discrimination towards intersex people, leading to ignorance, violence, and prejudice. Hostile environments like Nigeria make it challenging for them for find acceptance and support and hinders them from having health and fulfilling intimate relationships.

COUNSELLING FOR INTERSEX INDIVIDUALS AND FAMILIES

There is a lack of psycho-social counselling options for intersex individuals and their families, this is an extremely hurtful and fatal experience for the child. In Nigeria, parents and families of intersex children do not have contact with intersex adults and peers because of the stigma and discrimination faced by intersex people within the society and as such do not fully understand the portrayals of intersex bodily diversity. There's lack/misinterpretation of information and education from medical practitioners to families and parents of intersex persons relating to the true meaning of intersex. The beyond the binary research by intersex Nigeria shows that, in most cases, doctors are the ones who steer up discussions with parents towards surgery and pathologization.

Providing independent, non-medicalised psycho-social counselling is a major factor for preventing invasive and irreversible surgeries and other medical treatments on intersex infants and children. It is also sorely needed to ease the burden on parents and families of intersex individuals. With good support systems, parents and families of intersex children can support their children and face possible challenges that lie in their way.

WHAT YOU CAN DO

- Organize training for psychotherapists and counselors within your community and the healthcare facilities you directly work with to develop intersex specific guidelines and protocols to counseling, as well as increase their knowledge and sensitivity about intersex issues to ensure that counseling services are available and accessible for intersex individuals and their families.
- Create channels within your organization to empower intersex individuals and their parents of intersex children to advocate for their own needs and rights. This can be done through providing legal support them, helping them navigate friendly healthcare systems, and connecting them with other intersex individuals and families for peer support.
- Set up inclusive psychosocial counseling and peer support within your mental health space so intersex individuals can have access to adequate and respectful care without stigma and discrimination.
- Create budget lines within your financial department to allocate funds to issues of mental health and wellbeing of intersex children and their families, this is particularly for organizations who champion child rights.
- Collaborate with intersex led organizations in organizing workshops, developing IEC materials, sharing their social media contents and carryout research to raise awareness about intersex variations and the challenges faced by intersex individuals and their families.
- Raise awareness with future parents that intersex people exist, you can do this by developing and handing out hand bills and pamphlets with information in an expert-sensitive manner directed to individuals and couples expecting children.

THE LEGAL SITUATION OF INTERSEX IN NIGERIA

In Nigeria, an overwhelming number of people and the government only know and accept two sexes (male and female) the existence of intersex people and their bodies is not recognized. Instead, healthy bodies are considered to be a medical problem and a psycho-social emergency that needs to be fixed by surgical, hormonal, other medical and sometimes psychological means.

According to the Beyond the Binary research document published by Intersex Nigeria in 2023, The misunderstanding of this biological variation is pervasive and affects every aspect of an intersex person's life and is sometimes followed by costly, harmful, and irreversible surgeries. This situation is mirrored in several countries around the world.

There are no laws, policies or provisions for the protection, promotion and recognition of intersex persons rights and wellbeing in Nigeria. The rejection of the UPR 3rd cycle recommendation relating to sustainable development goal 5 (Gender equality) regarding the exclusion of minority groups like intersex people has made it difficult for intersex people to advance their rights especially through the Child Rights Act (CRA) and Violence Against Person Prohibition Act (VAPP) which are laws that can be leveraged on to offer support for all persons regardless of age or sex.

THE EFFECTS OF INVISLIBILITY ON INTERSEX SRHR IN NIGERIA

The lack of scientific, contextual, and lived experience understanding of intersex bodily anatomy by the government, medical practitioners, religious bodies, and society has persistently led to the misunderstanding and misinformation about what it means to be different.

Intersex individuals are not yet acknowledged or recognized in Nigeria, and this has led to the lack of access to appropriate healthcare services, information, and support. this invisibility among the broader society has caused intersex people to experience feelings of isolation, frustration, confusion, and exclusion.

There is limited availability of accurate and comprehensive information about intersex people, their variations, the implications, and available options of medical interventions because their issues are usually just swept under the carpet. Prior before the intervention of Intersex Nigeria, this lack of knowledge has created misunderstandings and misconceptions both within the medical space and among the public.

The invisibility of intersex people in Nigeria has led to the lack of legal recognition and protection of their human rights and wellbeing. Without any laws or policies recognizing and protecting us, we face daily stigma and discrimination in religious spaces, healthcare facilities and from practitioners, we are socially isolated and stigmatized and face violations of our bodily autonomy.

WHAT YOU CAN DO

- Collaborate with intersex organizations, allies, and individuals to build the capacity of health care providers, policymakers, traditional and new media, and the public by educating them on the different known intersex variations, the implications of IGM and all other unnecessary corrective surgeries on intersex bodies. This education can be done through training workshops, development of IEC materials, conversations on media outlets, hosting webinars, and speaking at public events.
- Take up advocacy initiatives to advocate for legal frameworks that acknowledge and protect the rights of intersex individuals, this is essential for promoting the SRHR of intersex people and ensuring their full inclusion in the society.
- Organize and lead campaigns to raise awareness about the effects of invisibility on the SRHR of intersex individuals. share their stories and amplify their voices, create platforms for them to speak about their challenges and demand for their rights.

13. See the beyond the binary; exploring the diversities of intersex identities and experiences published by Intersex Nigeria https://intersexnigeria.org/beyond-the-binary-exploring-the-diversities-of-intersex-identities-and-experiences/
14. See CRA https://www.refworld.org/cgibin/texis/vtx/rwmain/opendocpdf.pdf?reldoc=y&docid=556820554
15. See VAPP https://www.ilo.org/dyn/natlex/docs/ELECTRONIC/104156/126946/F-1224509384/NGA104156.pdf
16. See the in-between sexes documentary produced by Intersex Nigeria https://www.youtube.com/watch?v=iqR08YvUPIg

THE MALTA DECLARATION (WHAT INTERSEX PEOPLE WANT)

The unanimous demands of the international intersex human rights movement were laid out in the *Declaration of Malta* at the 3rd International Intersex Forum in 2013. The Declaration demands that an **end is put to mutilating and 'normalising' practices** such as genital surgeries, psychological and other medical treatments. Instead, intersex people must be empowered to make their own decisions about issues that affect their bodily integrity, physical autonomy and self-determination.

The Malta Declaration also emphasises that **creating and facilitating supportive, safe and celebratory environments** for intersex people, their families and surroundings is key. This includes enacting anti-discrimination legislation protecting the ground of sex characteristics and ensuring that intersex people are protected against intersectional discrimination. It also means ensuring the provision of all human rights and citizenship rights to intersex people, including the right to marry and form a family and the right to have documents that reflect the person's gender identity.

In relation to the injustice and suffering caused to intersex people in the past, the Declaration calls for **providing adequate redress**, reparation, access to justice and the right to truth. This means that intersex people must have the right to full information and access to their own medical records and history.

Medicalisation and stigmatisation of intersex people results in significant trauma and mental health concerns. It is important to ensure that **non-pathologising psycho-social and peer support** should be available to intersex people as required throughout their life, as well as to parents and/or care providers. should be available to intersex people as required throughout their life, as well as to parents and/or care providers.

INTERNATIONAL HUMAN RIGHTS RECOMMENDATIONS FOR INTERSEX RIGHTS

In the past 10 years, more than 15 international human rights bodies have issued very clear recommendations that call on governments to end non-consensual medical interventions on intersex individuals. In 2023 the African Charter on Human and People's Rights published Resolution 552 on promoting and protecting the rights of intersex individuals in Africa and several other interventions have been taken to the regional and international levels to ensure the bodily autonomy and integrity of intersex people in Nigeria.

- Resolution on the Promotion and Protection of the Rights of Intersex Persons in Africa - ACHPR/Res.552 (LXXIV) 2023
- The UN Special Rapporteur on torture and other cruel, inhuman or degrading treatment or punishment Juan Mendez reaffirmed (in 2013) the Committee's against Torture recommendations by calling upon all states to repeal laws permitting intrusive and irreversible treatments, "including forced genital-normalizing surgery [and] involuntary sterilization when enforced or administered without the free and informed consent of the person concerned" and to provide special protection to individuals who are part of marginalized groups.
- In 2014, the UN High Commissioner for Human Rights Navi Pillay again stressed that "irreversible surgeries and sterilisations continue to be performed on intersex children without their informed consent, causing lifelong harm.
- in 2014, seven UN bodies, some of which had not previously spoken out on intersex issues, released an interagency statement describing non-consensual, cosmetic, and other non-medically necessary surgery on intersex infants as human rights violations.
- In 2015, three UN bodies called on seven State Parties, one of which in Africa, to protect the physical integrity, bodily autonomy and right to self-determination of intersex individuals. The recommendation included a call to take the "necessary legislative, administrative and other measures to guarantee the respect for the physical integrity and autonomy of intersex persons and to ensure that no one is subjected during infancy or childhood to non-urgent medical or surgical procedures intended to decide the sex of the child"

17. *See the resolution 552 by ACHPR 2023 https://achpr.au.int/en/adopted-resolutions/resolution-promotion-and-protection-rights-intersex-persons*
18. *https://www.ohchr.org/en/statements/2014/05/statement-navi-pillay-united-nations-high-commissioner-human-rights-occasion?LangID=E&NewsID=14654*
19. *https://www.who.int/reproductivehealth/publications/gender_rights/eliminating-forced-sterilization/en/*

PRACTICAL GUIDANCE AND STRATEGIES FOR INTERSEX SRHR ADVOCACY AND CAMPAIGN

ADVOCACY

The term advocacy is often used as if people share a common understanding of it. There are many definitions of advocacy, and much debate exists regarding which one is most appropriate to make use of. To simply put, advocacy is the act or process of pleading or arguing in favor of a cause, idea, group, or policy. It includes multifaceted and multileveled strategies that can be taken to bring about/elicit societal or broad change. It is about influencing people, policies, practices, structures, and systems in order to bring about such change. It can include work that focuses on one specific issue, campaigns that span a specific period of time or ongoing work that addresses a range of issues.

It is generally accepted that the mission of advocacy is to create a society that is fair and just, where the needs and interests of marginalised individuals or groups are represented and addressed.

POLICY ADVOCACY

Policy advocacy is therefore the deliberate process of informing and influencing decision-makers to effect policy change or improve the implementation of existing policies. Before commencing the policy advocacy process, you will need to have a good understanding of the policy environment in Nigeria around intersex issues.

KEY QUESTIONS THAT NEED TO BE ANSWERED IN DETERMINING A POLICY ADVOCACY

- What is the problem?
- Is it one that policy can address?
- Are there existing polices on intersex to leverage?
- What group or groups are impacted adversely by this situation?
- What is the policy-making process within Nigeria?
- What agency or institution is responsible for implementing the policy or type of policy you want to target and who are the decision makers?

- Who are the other actors or stakeholders that may have an interest in pursuing this policy advocacy with you?
- What traditional laws, customs or religious doctrine that might affect your targeted policy and/or decision makers?

ORGANIZING WORKSHOPS AND TRAININGS

Organizing workshops and trainings on intersex issues and rights for medical practitioners, policy makers, media, traditional and religious leaders, parents, and the public requires careful planning and consideration. Training and workshop sessions can help people recognize their own biases and stereotypes and notice how their choice of words and assumptions can reflect unconscious biases about intersex issues and help them with the realization of their roles in ensuring intersex rights and recognition.

Before starting the training session, reassure participants that all opinions are respected, and encourage them to provide their own examples. The aim of the training session is to provide participants with the knowledge and tools needed to ensure the end of intersex genital mutilation and promotion of the human rights and wellbeing of intersex individuals in Nigeria.

TIPS TO CONSIDER

Define your objectives: clearly identify the goals of your workshop or training. Is it to increase awareness, promote understanding, or advocate for policy changes? This will help shape the content and structure of your activity.

Determine your target audience: this will tailor the needs of the workshop accordingly. For example, traditional leaders will need stories, role plays etc. to connect with their emotions, medical practitioners may require more technical information, while policy makers may need a focus on the legal aspects. Understanding the needs of each group will ensure that the content is relevant and engaging.

Engage intersex experts: Invite intersex experts to be a part of your event from the planning stage to the implementation and evaluation stage to share their knowledge and experiences. This could include medical professionals, human rights advocates, intersex individuals, and representatives from relevant organizations. Their expertise will provide valuable insights and perspectives.

Interactive sessions: Incorporate interactive exercises like group discussions, case studies, role-playing, or Q&A sessions into the workshop to encourage engagement and participation. Interactive sessions help to foster a deeper understanding and create a safe space for dialogue.

Sensitivity and inclusivity: Ensure that the workshop is conducted in a sensitive and inclusive manner. Emphasize the importance of respecting intersex individuals' rights, privacy, and autonomy. Use inclusive language, respect pronouns, and create an environment where everyone feels comfortable sharing their thoughts and experiences.

POINTS TO COVER

Address biases, assumptions and misconceptions and myths: Address common misconceptions and myths surrounding intersex individuals and their issues. Provide accurate information to dispel stereotypes and challenge biases and assumptions based on the way a person looks or the sound of their voice to promote a better understanding of intersex variations and experiences.

Legal and policy frameworks: Discuss existing legal and policy frameworks related to intersex rights. Explore the VAPP Act and the CRA, highlight areas that need improvement and explore strategies for advocating for change. Offer your participants access to relevant resources such as research papers, policy documents or support documents. This will empower participants to take action and drive policy reform.

Collaborations: Encourage collaboration and networking among participants. Facilitate opportunities for them to connect with each other, share experiences, and build alliances. This will help create a strong and supportive community working towards intersex rights.

Evaluation and feedback: After the workshop, ask participants to evaluate the training, gather feedback from them to assess the effectiveness of the activity and identify areas for improvement. Use this feedback to refine future workshops and trainings.

SETTING UP INTERSEX CAMPAIGNS

To ensure we have great intersex advocacy campaigns we need effective communication we need to identify what must change and who needs to be reached to bring about that change? Within the overall campaign strategy, the communication strategy defines how to capture the attention of the target audiences and convey a compelling campaign message.

During this toolkit development process, the SRHR issues of intersex people has been identified, the situation analyzed, the stakeholders and target audiences identified, and the campaign objectives or intended outcomes has been set with the recommendations and what you can do to support. This forms the basis to begin crafting a good communications strategy.

TIPS TO CONSIDER

- The norm in advocacy campaign is to set your communication goal and objective depending on your primary and secondary target audiences, they need to be reached differently and will likely require different types of actions.
- Develop key messages that effectively speak to the audiences. Your messages should be tailored to resonate with the target audiences, various versions of a message may need to be prepared to reach different audiences. For example, the message that "corrective" surgeries are done on intersex babies is a violation of human rights' could be understood differently by a policy maker, a religious leader, or a community elder. It may need to be adjusted while maintaining the essence of the meaning to be better understood. It is also important to consider who will deliver the messages, i.e. the "messengers".
- Identify effective communication channels, techniques and tools that will effectively reach the targeted audience. For example, messages targeting community leaders and traditional leaders can be communicated through traditional media and translated to their local languages while other existing social networks, and media channels (including modern mass media such as radio and TV, "new media" such as the internet and SMS, and "folk media") can also be explored for other target audiences.
- Map accessible communication resources. Different people have different preferences and needs when it comes to accessing information. Some may prefer to read text-based content, while others may find it easier to understand information through visual aids or audio recordings. Use communication resources like written documents, infographics, videos, and audio recordings also, pay close attention to the designs and layout of your resources for individuals with visual impairment.
- Set and monitor timelines, milestones, and indicators in your communications action plan, this helps to translate the strategy into specific guidance for its activities, while monitoring helps to verify, at regular intervals, whether the strategy is progressing as planned, and whether context changes call for adjustments, e.g. different strategies.
- Write up a communication strategy document to clearly define, layout and track all the key steps mentioned above. A written document can also be shared easily with all campaigners to ensure that everyone is 'on the same page' in terms of messaging and how communications activities will be conducted.

ADVOCACY CAMPAIGN ACTIVITIES

RADIO/TELEVISION SHOWS AND ADS CAMPAIGN

You and your organization can hold a tv or radio broadcasts where you have the leaders or young people within your organization discussing issues of Intersex Genital Mutilation (IGM) and the discrimination against intersex people that exist even in healthcare. Select people who are eloquent and can articulate themselves clearly and who and knows and understands intersex issues.

CREATE DOCUMENTARIES

Documentaries which cover the lived experiences of intersex people and their challenges with SRHR can be produced and shed more light on the challenges that exist within the intersex community. Documentaries which look at the possible negative impact of selected certain laws against intersex persons should be produced in different local languages.

WRITE ARTICLES TO EXPOSE IGM AND OTHER HARMFUL PRACTICES

Select people withing your organization with good communication and writing skills and has a firm grasp of the intersex issues of concern to write articles for newspapers, websites, newsletters, and magazines which usually doesn't incur costs. An example of a news article that puts an issue in the public domain can be written focusing on e.g., stigma and discrimination of intersex persons within healthcare systems.

INVITE THE MEDIA TO ATTEND AN EVENT OR PROFILE STORY

The media is not always aware of important social and policy issues that are taking place in Nigeria. Therefore, you should invite the media to attend any marches, public talks, or information sessions that you may be organizing or have access to, this could be physical or virtual events. Make an effort to develop relationships with journalists, producers and editors that are interested in your work and social change. If your organization or advocacy working group or alliance has funds or resources available, you can host an event to debate or discuss an intersex issue and invite the media to attend.

USE FACEBOOK, X, INSTAGRAM ETC

Social media platforms can be used to draw attention to important issues as well as to directly communicate with key audiences. Facebook is known for engaging older profiles, it could also be a campaign tool for engaging, women leaders, traditional leaders, and parents.

If you have access to the internet, starting a campaign or group has no cost. You will need to identify someone to monitor and manage online activity and content.

WRITE SUBMISSIONS (RECOMMENDATIONS) RESPONDING TO PROPOSED LEGISLATION

Submissions are written, or oral, presentations detailing an organization's views or opinions on a matter or piece of legislation under consideration by a governmental law-making body such as Parliament. Submissions can be written by people who possess good writing skills and a firm grasp of the issues of concern. If they are being presented orally, such persons should know the issues well and be able to articulate them clearly.

CREATE AND DISTRIBUTE IEC MATERIALS

Information, education, and communication materials such as such as pamphlets, booklets or manuals providing relevant information about the SRHR challenges of intersex people is a useful campaign strategy if you need to share important information with community members. This strategy may require that you produce a wide range of resource materials. Your organization must be prepared to develop the content of such materials and pay for design and layout as well as printing, distribution and possibly translation into other languages.

ATTEND PUBLIC HEARINGS

The Nigerian government and their various affiliates are often required to hold public hearings when developing a new law or policy. Since these public hearings will influence the development of public policy, it is important to attend these meetings to monitor the development of legislation and prevent the passage of policies that could have a negative impact on the intersex society. You need to select a person or people that can vocalize key issues and concerns articulately. they must be prepared to engage with government officials and other organizations and be able to work collaboratively.

ORGANISE A DEMONSTRATION OR A SIT-IN

Mobilizing the public can be effective in terms of placing pressure on government and policymakers. When doing so, always ensure that any members of the public who have been mobilized understand the issue, are allies and are truly supportive. Take advantage of international and national days of commemorations that specifically speak to the issue you are demonstrating for. An example will be the International Intersex Awareness Day which happens every 26 of October.

No financial resources should be required. However, members of the public may require reimbursement for any expenses they incur, such as transport costs. If a demonstration or sit-in lasts more than a few hours, the provision of food may be necessary.

PARTICIPATE IN, AND ISSUE SHADOW REPORTS AT KEY REGIONAL AND INTERNATIONAL SPACES LIKE UN MEETINGS, AFRICAN UNION (AU), HEALTH MINISTERS MEETINGS, ETC.

Many global events at which governments are given the opportunity to submit progress reports, also allow for civil society to submit shadow reports, in order to receive a balanced view of a country's progress on a specific issue. A significant amount of time and effort is needed to produce a comprehensive report of this nature. Staff time will be needed to conduct research and write up the findings, collaborate with intersex organizations to make this happen.

Financial resources will be necessary if you wish to have the report professionally designed and printed in order to make an impact. Such an undertaking, however, is very valuable as any consequent work will have a very strong evidence base, lending much credibility to your campaigns.

USE NATIONAL, REGIONAL AND GLOBAL ACCOUNTABILITY MECHANISMS

Explore the possibility of utilizing accountability mechanisms such as national human rights institutions (for example, in Nigeria: The Public Protector, the National Human Rights Commission) and regional mechanisms like the African Commission on Human and People's Right (ACHPR), AU Special Rapporteurs, UN Special Rapporteurs, UN Universal Periodic Review, International Criminal Court etc.

ORGANIZING OUTREACH ACTIVITIES

Outreach activities refer to the various initiatives and efforts taken by individuals or organizations to engage with and connect with a specific community or target audience. These activities are designed to promote awareness, build relationships, and foster a sense of belonging and inclusivity.

One of the most common forms of outreach activities is community outreach events. These can range from small gatherings to large-scale festivals or fairs. These events provide an opportunity for people to come together, share experiences, and learn from one another about specific issues affecting their community. They often feature interactive activities, such as workshops, demonstrations, or performances, which encourage participation and create a sense of unity.

Outreach activities play a crucial role in fostering community engagement and connection. They empower individuals to make a positive impact within their community. Whether through community events, volunteer work, educational initiatives, or online platforms, these activities create a sense of belonging and inspire individuals to actively contribute to social change.

TIPS TO CONSIDER IN ORGANIZING COMMUNITY OUTREACH ACTIVITIES

Define your goals and objectives

The first step in implementing a successful community outreach program is to clearly define your goals and objectives. What do you hope to achieve through your outreach efforts? Are you looking to increase community engagement in seeking information and counseling from Intersex Nigeria?, raise awareness about your organization, Intersex Nigeria and the SRHR issues of intersex persons, or build relationships with key stakeholders in these communities? By clearly defining your goals, you will be able to develop a focused and effective outreach strategy.

Identify your target audience

Once you have established your goals, it is important to identify your target audience. Who are the key stakeholders that you want to engage with? Are you targeting a specific demographic or geographic area? Understanding your target audience will help you tailor your outreach efforts to effectively reach and engage with them.

Research community needs and interests

To ensure that your outreach efforts are relevant and impactful, it is crucial to conduct research on the needs and interests of the community you are trying to reach, understand what their cultural beliefs, values and practices are. This can be done through surveys, interviews, or by collaborating with local organizations and community leaders already engaging in these communities. By understanding the specific needs and interests of the community, you can develop outreach initiatives that are effective in getting them to support your goal.

Develop a comprehensive outreach plan

Based on your goals, target audience, and research findings, it is time to develop a comprehensive outreach plan. This plan should outline the specific activities and initiatives you will undertake to engage with the community. It should include a timeline, budget, and clear objectives for each outreach initiative. Consider a mix of online and offline activities, such as social media campaigns, community events, workshops, or partnerships with local and private businesses.

Build partnerships and collaborations

Collaboration is key to successful community outreach. Identify potential partners and collaborators who share similar goals and can amplify your outreach efforts. This could include local businesses, nonprofits, CBOs, schools, faith based organizations, media outlets, or government agencies. By working together, you can leverage each other's resources, expertise, and networks to maximize the impact of your outreach initiatives.

Implement and evaluate your outreach efforts

Once your outreach plan is in place, it is time to put it into action. Execute each initiative according to the timeline and objectives outlined in your plan. Monitor and evaluate the effectiveness of your outreach efforts by tracking metrics such as attendance, engagement, testimonials, and feedback. This will help you identify what is working well and what needs improvement, allowing you to make adjustments and refine your outreach strategy as needed.

Maintain ongoing communication and engagement

Community outreach is an ongoing process, and it is important to maintain regular communication and engagement with the community. Keep your target audience informed about your organization's activities, achievements, and upcoming initiatives through newsletters, social media updates, or community meetings. Actively listen to feedback and suggestions from the community and use this information to continuously improve and adapt your outreach efforts.

SOME EASY THINGS YOU CAN DO FOR THE INTERSEX COMMUNITY

TALK ABOUT IT

Invisibility and the lack of knowledge is one of the key reasons for the discrimination and human rights violations intersex people face in Nigeria. By spreading the word about the existence of intersex people and the human rights violations and discrimination they face, you work towards making our society a lot safer and a more welcoming space for intersex people. This includes making intersex people's existence visible by mainstreaming intersex issues in all areas of life and politics in Nigeria.

CREATE A SAFE SPACE FOR INTERSEX PEOPLE

It is very likely that you already have intersex people in your organization, at your workplace or even amongst your neighbors, friends, and family; therefore, creating a safe space for them to thrive is crucial. Those individuals might not feel safe enough to identify as intersex yet. Sometimes the intersex person themselves does not know that they are intersex.

A good way to be inviting is to add the "I", but only if you are willing to work for intersex people's rights. Do not just add another letter to the acronym or to you program target community for the sake of it. In doing so, be aware of intersex diversity! Not all intersex people are queer. Make sure that you provide spaces where intersex people feel comfortable with their identities, including the fact of not being LGBT and for those who are LGBT as well, this is particularly for human rights organizations who do not provide interventions specifically for LGBT individuals.

INTEGRATE THE "I" INTO YOUR WORK

Inform your colleagues and the members of your networks on intersex human rights issues. As a first step, you might consider asking Intersex Nigeria and other intersex activists if they can provide training or advice for you. This will help you better understand intersex issues, the challenges intersex organizations face and how you can effectively work for the improvement of intersex people's situation in Nigeria.

Reading this toolkit is a good step to begin. But there is far more to know than can possibly be covered in these pages. Check out the references in this toolkit for further information. Read Intersex Nigeria and other intersex organization's websites for regular updates on current intersex developments. The demands formulated in the 'Declaration of Malta' (2013) are the key demands of the international intersex human rights community. Following the lead of these documents is the right thing to do.

SUPPORT INTERSEX ACTIVISTS AND NGOS

Being visibly intersex is still a very difficult task in Africa and Nigeria specifically. Despite this fact, the number of intersex activists and organizations in Africa is growing but they all work with almost none or very limited funding. Becoming an intersex activist most often means having to forfeit the chance of having a regular income. Due to the lack of funding, you are expected to provide professional and highly specialized expertise for free. Helping intersex activists and NGOs financially to perform their task is key to ensuring they can share the unique expertise they have.

The advocacy work of the last few years is producing its first successes. Now is the time when resources are really needed to make the work sustainable and effective. If you have the financial means to support intersex human rights organizations, this is a great way to help. This can be very small ad-hoc support for certain tasks or travel, as well as more on-going support of the movement.

NOTHING ABOUT US WITHOUT US

Work with intersex NGOs and help them to create new alliances. Intersex human rights organizations are the best contact point for getting up-to-date information on the human rights violations faced by intersex people. They have long-term experience in advocating for intersex human rights.

Contact your national intersex human rights NGOs/CSOs and offer your support. Ask them which strategies they pursue and how you can assist them in reaching their goals. This can include simple tasks like sending material to your mailing lists on a regular basis, sharing information on social media platforms or putting them in touch with policy makers, political parties, equality bodies, opinion leaders, practitioners, mainstream human rights organizations, and other stakeholders.

When you think of engaging in specific actions in the field of legislative, parliamentary, or judicial procedures, we strongly recommend that you get in touch with your national intersex human rights organizations. Those organizations are more likely to be informed in detail on the current national and international developments. If you don't have this expertise within your NGO, then working together is the way to go for the betterment of intersex people's situation in your country.

TIPS FOR LGBT ACTIVISTS AND OTHER HUMAN RIGHTS DEFENDERS

Please don't apply for extensive funding just to start working on intersex, especially if you have no intersex leadership in your organization.

Please bear in mind that the needs of intersex people differ from LGB and T needs. Do not take action without being sure that you understand the issues at stake and the wider consequences of your action.

Remember that the very simple rule "Nothing about us without us!" also applies for intersex people and their allies.

BEST PRACTICES

Intersex Sexual and Reproductive health and rights (SRHR) advocacy is an essential part of the broader human rights movement that aims to promote and protect the rights of intersex individuals. Cross movement partnerships can amplify the impact of intersex advocacy efforts for us in Nigeria like it has succeeded globally.

In recent years, there has been an increased recognition of intersex SRHR advocacy worldwide here are some best practices that have emerged from this movement:

Raise awareness and Educate: Advocacy efforts focus on raising awareness and educating the public, stakeholders, the media, healthcare workers, educational institutions e.tc. about intersex variations, dispelling the myths and misconceptions around intersex bodies, and educating the society about the specific and intersectional needs and experiences of intersex individuals to foster understanding and empathy.

Addressing root causes of intersex violations: our advocacy efforts need to address the roots causes of lack of awareness, misconception, harmful social and religious attitudes, stigma, and taboos which perpetuate intersex rights violations, and prevent people from speaking out.

Use and promote inclusive language: Intersex advocates around the world emphasize the importance of using inclusive language and terminologies when discussing intersex issues. This means avoiding stigmatizing or pathologizing languages like 'hermaphrodite, Intersex condition, and other native derogatory terms and instead adopt neutral and respectful terms that empower intersex individuals.

Leverage on international frameworks: Activists and CSOs should always refer to the Universal Declaration of Human Rights (UDHR), Conventions on the Rights of a Child (CRC), International Covenant on Economic, Social and Cultural Rights (ICESCR) and the African Charter on Human and People's Rights (ACHPR), including every other framework applicable. These

frameworks provide solid foundation for our advocacy efforts, as these frameworks establish standards and guidelines that our government should follow in ensuring protection of the rights of intersex people, from birth to adulthood, addressing the harmful medical and cultural practices that infringe on the rights of a child and provide access to comprehensive healthcare services to all intersex individuals.

Centering Intersex Voices and Leadership: "Nothing about us without us" this a famous inclusivity slogan for feminist organizing globally which is applicable to intersex people and their allies. Intersex advocacy efforts should include striving to empower intersex individuals to become agents of change and drive intersex advocacy themselves. Intersex leadership is important in shaping SRHR advocacy and amplifying intersex voices. human rights activists and CSOs should ensure that intersex SRHR advocacy is grounded in the lived experiences and needs of intersex individuals themselves and understand that intersex individuals have unique experiences and perspectives that must be heard and valued.

Adopt an intersectional approach to storytelling: Intersex advocates should always recognize the intersectionality of intersex experiences with other forms of discrimination, stigmatization, and marginalization such as Sexual Orientation, Gender Identity, Expression and Sex Characteristics (SOGIESC), race and disability. This would ensure that our intersex SRHR advocacy efforts address the specific and unique challenges faced by intersex individuals who identify with multiple marginalizes communities to attain equity and justice.

Advocate for legal protections: our advocacy efforts as a movement should collectively push for the enactment of laws and policies to ensure the legal protection of intersex individuals and their rights. These legal protections should include advocating for the prohibition of non-consensual medical interventions on intersex children, the recognition of intersex variations in legal documents and the inclusion of specific health care provisions in national health policies for intersex people and their families.

Collaborate with Intersex Activists and Organizations to build supportive network: Intersex SRHR advocacy thrives on collaborations, coalition building and support networks, bringing together intersex led organizations, human rights activists, feminists, healthcare professionals and other stakeholders. Collaborating with intersex activists and organizations centers their voices and specific needs. By working together as a movement, we can amplify our voices, share resources, and utilize our diverse expertise and advocate for systemic changes for the intersex community.

Support Intersex Programs/Projects: Intersex SRHR advocacy includes promoting and actively participating in intersex programmes and activities. You can reshare intersex specific contents with your audience to amplify the program reach, you can join in on intersex campaigns and matches on intersex international days of commemoration and participate in field research and other activities that will amplify the advocacy goals of intersex rights protection within your community.

Media and storytelling: storytelling and media leverage is a huge advocacy strategy that intersex SRHR advocates have used in gaining intersex awareness in many countries. These strategies humanize intersex SRHR and create positive narratives that reflect the lived realities, experiences, struggles, and triumphs of intersex individuals. Several tools, platforms and spaces like documentaries, educational materials, public speaking events, blogs and books are used to gather empathy, understanding of intersex issues and achieve change.